



SPONSOR: Sen. Townsend & Rep. Morrison

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 167

AN ACT TO AMEND TITLE 21 OF THE DELAWARE CODE RELATING TO EXTRA DUTY SERVICES BY LAW ENFORCEMENT OFFICERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 7, Title 21 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 706. Disposition of fines and costs.

(a) All fines collected for the violation of any of the provisions of this title, in the limits of any county, incorporated city or town in this State where arrests are procured by the authorized representatives of that county, incorporated city or town, shall be paid to that county, incorporated city or town within which such offense was committed for the use of that county, incorporated city or town. Nothing in this section shall be construed to entitle any county to fines, penalties or forfeitures arising from an arrest made under this title by an authorized representative of that county for a violation committed within any incorporated city or town. All the fines, penalties and forfeitures imposed and collected in any county of this State for violation of any of the laws of this title in relation to motor vehicles, where the arrests are procured by the authorized representatives of the Department of Safety and Homeland Security, shall inure and be paid to the State Treasurer for the General Fund. Such fines, penalties and forfeitures shall be collected as other fines, penalties and forfeitures are collected under the laws of this State, and the officers collecting them shall make a monthly report thereof to the State Treasurer on blanks to be furnished for that purpose by the Department of Safety and Homeland Security. All costs collected for the violation of any of the provisions of this title shall be paid to the jurisdiction whose court imposed said costs.

(b) All fines and costs collected as a result of radar or other speed timing devices, where the device is operated to determine speed beyond the corporate limits of an incorporated city or town but within the jurisdiction of the extended corporate limits provided by the applicable municipal charter, shall be paid to the State Treasurer for the General Fund.

(c) Violation, refusal or neglect to comply with any of the provisions regarding the disposal of fines and forfeitures as provided in subsection (a) of this section shall constitute misconduct in office and shall be ground for removal therefrom.

(d) Notwithstanding subsections (a), (b), and (c) of this subsection, any fines collected for the violation of any of the provisions of this title, where the fine was issued by a law enforcement officer performing extra duty services, shall be

24 applied to offset or refund any amounts owed or paid for the law enforcement officer's extra duty services. For purposes of
25 this subsection, "extra duty service" means a law enforcement service performed by an off-duty law enforcement officer
26 contracted by a private person or entity. All "extra duty services" must be authorized and approved by the relevant law
27 enforcement agency.

SYNOPSIS

This Act is intended to assist homeowners associations with the troubling, challenging public-safety issue of speeding on subdivision streets.

This Act provides that any fines for violations of any provision under Title 21 of the Delaware Code, if the fine was issued by an off-duty law enforcement officer acting in an "extra duty" capacity, shall be applied to offset or refund any amounts owed or paid for the law enforcement officer's extra duty services. "Extra duty," in this context, means a law enforcement service performed by an off-duty law enforcement officer hired and paid for by a private person or entity. "Extra duty" services include traffic control, patrolling a specific location, and providing security. The purpose of this Act is to allow private persons and entities, such as homeowners associations, to recoup the costs of hiring law enforcement officers for extra duty services.

Author: Senator Townsend